

Kedarnath Panda vs Ritika Nanda Opp. Party on 27 July, 2022

Author: Savitri Ratho

Bench: Savitri Ratho

IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP (C) No.426 of 2021

Kedarnath Panda		Petitioner
	Mr.Byomakesh Tripathy, Advocate along with Mr. B.P.Bbahali, Advocate	
	Versus	
Ritika Nanda		Opp. Party

CORAM:
JUSTICE SAVITRI RATHO

ORDER

27.07.2022 Order No.

02. TRP (C) No.426 of 2021 & I.A. No.483 of 2021

2. This matter is taken up by hybrid mode.

3. Mr. Byomakesh Tripathy, learned counsel for the petitioner is permitted to remove defect No.7 (ii) pointed out by the S.R. in Court today.

4. This application has been filed by the petitioner-husband under Section 24 of C.P.C. read with Section 151 C.P.C. for transfer of C.P. Case No.63 of 2021 filed by the opp. party-wife under Section-13 (1) (i-a) of Hindu Marriage Act, 1955 for divorce in the Court of learned Judge, Family Court, Angul, to the Court of learned Judge, Family Court, Bhubaneswar.

5. Learned counsel for the petitioner submits that the petitioner had initiated C.P. No.143 of 2021 under Section 9 of the Hindu Marriage Act in the Court of learned Judge, Family Court, Bhubaneswar and the opp. party filed TRP (C) No.102 of 2021 before this Court praying for transfer of the said case from Bhubaneswar to Angul, but this Court while declining to allow the transfer petition, disposed of the same with certain directions vide order dated 23.06.2021. He further submits that the petitioner is a doctor by profession and is presently // 2 // pursuing his Post Graduation course at M.K.C.G. Medical College and Hospital, Berhampur by taking the study loan and he is staying with his aged parents in Bhubaneswar in a flat for which he and his father have taken home loan. As he has to attend classes as well as duty in the hospital at Berhampur, it will be very difficult and inconvenient for him to go to Angul to contest the case. On the other hand, if the case is transferred to Bhubaneswar which is closer to Berhampur, it will be convenient for both the

parties as the parents of the opp. party are also residing in Bhubaneswar. He also submits that the Hon'ble Supreme Court in a number of cases have also stated that in matrimonial cases though paramount consideration of the wife shall be taken into consideration but simultaneously the convenience of the husband shall also be taken into consideration and if necessary travelling expenses of the wife can be directed to be paid by the husband. In this case as the petitioner is pursuing his P.G. course, he will face great inconvenience in his studies and profession unless the case is transferred to Bhubaneswar.

6. Considering the above submissions, issue notice to the opp. party in the main case as well as in the I.A. by Speed Post with A.D., requisites for which shall be filed by 29.07.2022. The notice shall be made returnable within two weeks.

7. List this matter on 22.08.2022.

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Savitri Ratho Judge Bichi